Privacy Policy

Effective: May 7th, 2024

Introduction

StudyPad, Inc. ("Company," “SplashLearn,” “we,” “us,” “our,”) knows that you care about how your and your child's Personal Data is used and shared. Please read this Privacy Policy to learn how we treat your and your child’s Personal Data.

By visiting the SplashLearn website or any other linked pages, features, content, or applications offered from time to time by Company in connection therewith (collectively, the "Services"), or using any of our Services, you acknowledge that you accept the practices and policies outlined below and you hereby consent that we will collect, use and share your data as described in this Privacy Policy.

Remember that your use of SplashLearn's Services is at all times subject to our , which

incorporates this Privacy Policy. Any terms we use in this Policy without defining them have the definitions given to them in the Terms of Use.

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What Does This Privacy Policy Cover?

This Privacy Policy covers how we treat Personal Data. “Personal Data” means any information that identifies or relates to a particular individual and also includes information referred to as “personally identifiable information” or “personal information” under applicable data privacy laws, rules or regulations.

In this document "Personal Data" shall apply to Personal Data of individual Service users who are not child registrants. References to "Children's Personal Data" shall only apply to Personal Data of Child under the Age of Consent (defined below) users of the Services. General references to "data" or

"information" shall apply to all users.

Company gathers Personal Data and Children’s Personal Data when you or your Child under the Age of Consent accesses or uses the Services. This policy does not apply to the practices of companies that Company does not own or control, or to individuals that Company does not employ or manage.

If you have any questions about this privacy policy or how your Personal Data or Children's Personal Data is handled, please email us at

How is children's Personal Data treated?

The Children’s Online Privacy Protection Act (“COPPA”) requires that online service providers obtain parental consent before they knowingly collect personally identifiable information online from children who are under 13 years of age. Moreover, the EU General Data Protection Regulation (the “GDPR”) requires that data controllers obtain consent from the holders of

parental responsibility over children who are under 16 years of age before such controllers knowingly collect and process Personal Data from such children.

We do not knowingly collect or solicit Personal Data from a child under the age of 13 (if such child is located in the United States) or a child under the age of 16 (if such child is located in the European Economic Area or United Kingdom) (in each case, a "Child under the Age of Consent") without obtaining verifiable consent from that child's parent or guardian (such consent, "Parental Consent" and such individual, "Parent "), except for the limited amount of Personal Data we need to collect in order to obtain Parental Consent ("Required Information"). Until we have received Parental Consent, we will only use Required Information for the purpose of obtaining Parental Consent. Parental Consent is further described below in the "Data about Children" section.

If you are a Child under the Age of Consent, you may not register for the Services or otherwise disclose any Children's Personal Data to us

before we obtain Parental Consent, except that you may share Required Information solely for the purpose of the Company obtaining Parental Consent. You may only interact with the Services under an account created by your Parent who has provided Parental Consent.

If you believe that a Child under the Age of Consent has provided us with Children's Personal Data (beyond the Required Information) without our obtaining Parental Consent, please contact us at . We do not condition participation in our Services on disclosure of more Children's Personal Data from a Child under the Age of Consent than is reasonably necessary for that Child under the Age of Consent participation in the Services, and we do not retain Children's Personal Data from Children under the Age of Consent any longer than is reasonably necessary in order to fulfill the purpose for which it was disclosed.

If you are a Parent of a user of our Services who is a Child under the Age of Consent , you may contact us at any time () to ask that (a) we stop collecting Children's Personal

Data from such user, (b) we delete any Children's Personal Data already collected from such user (although note that we may further retain and use Anonymized Data as set forth the "Data that is Not Personal Data" section below), or (c) we stop disclosing Children's Personal Data collected from such user to third parties, but continue to allow for collection and use of Children's Personal Data collected from such user in connection with the Services.

If you are a child and your parent has signed up for the Service, you understand that your parent may be able to view all data within or associated with the account, including without limitation progress reports and usage data that tracks your performance on games, assessments and other tests available through the Services.

What Personal Data Does Company Collect?

The Personal Data you provide is used for such purposes as providing you the Services,

answering questions, sending product updates, and communicating with you about Company's products and services, including specials and new features. The Children's Personal Data you provide shall only be used for creating individual account (which will allow you to receive progress reports that include tracking your child's performance and progress). You can choose not to provide us with certain data, but then you may not be able to take advantage of many of our special features.

You may review, modify, stop collection of or remove your Personal Data or, if you are a Parent, your Child under the Age of Consent's Personal Data identified below at any time by logging into your account and accessing features to edit your profile and/or account information.

If you are a teacher or a school, by sharing information about students ("Student Data") or other data to SplashLearn, you expressly grant, and you represent and warrant that you have all rights necessary to grant, to SplashLearn a

non-exclusive, royalty-free, worldwide license during the term of the Agreement to use, transmit, distribute, modify, reproduce, display, and store the Student Data solely for the purposes of (i) providing the Services as contemplated by the Agreement, and as otherwise described herein, (ii) maintaining, supporting, evaluating, improving and developing our products, applications, and Service, and (iii) enforcing our rights under the Agreement.

We collect the following types of data from our customers:

Children's Personal Data

Profile Information: We collect certain information about Child under the Age of Consent such as screen name, age and gender directly from Parents when such Parents set up an account. For additional information about the data that we collect from Child under the Age of Consent, please see the table further below.

If you are a teacher or a school administrator, you may also provide a full name for each applicable student to be able to track progress and distinguish students. Therefore, you may choose to provide a different identifier instead of a student's name for this purpose. You may also provide us with a username and a password for each of the student accounts.

As a teacher you may also avail a QR code based login feature for their students. This method requires students to scan a QR code using their device's camera. The process of scanning the QR code does not capture any image, video, or other personal information. The process only reads the information contained in the QR code, which does not include any personal information.

Activity Data: We also record data around Child under the Age of Consent's usage of the Services such as their activities, their performance on games and activities, in order to send you reports and recommend the most appropriate games and activities.

Voice Recordings: A Child under the Age of Consent (or Parent) can record their voice while reading a digital book and play it back to help them learn to read. This recording stays on your device and is not sent to our servers. The recording is automatically deleted as soon as you move to the next page of the book. The record voice feature is optional, and microphone access can be denied without affecting access to the books.

Live Classes and Class Recordings: SplashLearn's live classes offering ("Live Classes") have live tutoring sessions ("Class Sessions") conducted over video conferencing by expert tutors. There may be more than one student participant in a Class Session. Student participants cannot turn on their video or audio and they cannot see or interact with other student participants during the Class Session. They may answer questions through a quizzing platform or using the chat feature available on the video conferencing platform. Their answers are only visible to the tutors and class coordinators and not to other student participants.

SplashLearn may make recordings of the class during a live class session (“Class Recordings”). As described above, since student participants cannot turn on their audio or video, Class Recordings only capture the audio and video of the tutor conducting the Class Session.

The Class Recordings may be used for improving the quality of instruction and to improve the class experience. To enable student participants to review a Class Session or in the case they were not able to attend it, Class Recording may also be shared with student participants and their Parents.

Parental Consent: SplashLearn obtains verifiable parental consent before collecting Personal Data from Children under the Age of Consent. If the Parent does not provide consent, we will not collect, use or disclose any Personal Data about the Child under the Age of Consent.

Contact and Payment Information

We collect your email address, account password, zip code, phone number, credit card and/or other payment information and any other information necessary for us to provide the Services. If you are a teacher or a school administrator we also collect your school name from you in order to provide you school level features and prevent misuse of the Services meant for teachers and schools.

We also offer parents and teachers the ability to sign up for the services using their existing Facebook or Google account. If you choose to sign up for the Services using one of these accounts, we will receive your full name from the service provider managing that account.

Additionally, you may also provide us with additional Personal Data when you contact us for product or technical support like an alternate communication method which we will use to answer your queries and process your requests. If you are using the service as an Educational Institution, Student information may be visible during Customer Support and/or Troubleshooting. Personal

Data such as Student Name, Teacher Email Address, login dates and times may be viewed on our service by Product Support Staff.

Push Notifications

We may also send parents and teachers practice reminders through our mobile apps. These notifications are intended for grown-ups only and can only be requested through the parent/grown-up sections of our mobile apps. You can opt-out from these notifications or modify the frequency of these notifications at any time through the app or device settings.

Activity Data

We receive and store certain types of information whenever you interact with our Services or use our Services. Company automatically receives and records information on our server logs from your browser including your IP address, cookie information, and the page you requested.

Cookies

The Services also use cookies and similar technologies such as pixel tags, web beacons, clear GIFs and JavaScript (collectively, "Cookies"). Cookies are small pieces of data– usually text files – placed on your computer, tablet, phone or similar device when you use that device to access our Services. We may also supplement the information we collect from you with information received from third parties, including third parties that have placed their own Cookies on your device(s). Please note that because of our use of Cookies, the Services do not support "Do Not Track" requests sent from a browser at this time.

We use information collected through cookies and usage of the Services for purposes such as to learn more about our user base; analyze trends; authenticate and secure the Services; enhance and personalize your experience; and in general to improve and operate our Services.

Such technology is also used to receive confirmation when you open an email from us. We use this confirmation to help us make

emails more interesting and helpful. When you receive emails from us, you can opt out of receiving further emails by following the included instructions to unsubscribe.

Advertising

We may run advertising campaigns to market our Services and use technology such as cookies to analyze the performance of advertising and improve them. We do not currently display third party advertisements on our Services or use third party cookies to track Children Under the Age of Consent for advertising purposes. We also do not engage in targeted advertising based on Student Data or Children's Personal Data.

For more information about our use of Cookies, please see our

To view summary of the categories of Personal Data that we collect and have collected over the past 12 months,

What Sources does the company collect information from

Categories of Sources of Personal Data

We collect Personal Data about you from the following categories of sources:

You

- **When you provide such information directly to us**
    - **When you create an account or use our interactive tools and Services.**
    - **When you voluntarily provide information in free-form text boxes through the Services or through responses to surveys or questionnaires.**
    - **When you send us an email or otherwise contact us.**
- **When you use the Services and such information is collected automatically**

- **Through Cookies (defined in the "Cookies" section).**
- **If you download our mobile application or use a location-enabled browser, we may receive information about your location and mobile device, as applicable**
- **If you download and install certain applications and software we make available, we may receive and collect information transmitted from your computing device for the purpose of providing you the relevant Services, such as information regarding when you are logged on and available to receive updates or alert notices.**

Public Records

- **From the government or other sources.**

Third Parties

- **Teacher or School Administrator**
    - **As noted above, teachers or school administrators may provide a student's name or other identifier for purposes of tracking progress and distinguishing students. Teachers or school administrators may also provide us with a username and a password for each of the student accounts.**
- **Vendors**
    - **We may use analytics providers to analyze how you interact and engage with the Services, or third parties may help us provide you with customer support.**
    - **We may use vendors to obtain information to generate leads and create user profiles.**
- **Advertising Partners**
    - **We receive information about you from some of our vendors who assist us with marketing or promotional services related to how you**

interact with our websites, applications, products, Services, advertisements or communications.

- **Social Networks**
    - **If you provide your social network account credentials to us or otherwise sign in to the Services through a third-party site or service, some content and/or information in those accounts may be transmitted into your account with us.**

How does the Company Use the Information it Collects

Our Commercial or Business Purposes for Collecting Personal Data

- **Providing, Customizing and Improving the Services**
    - **Creating and managing your account or other user profiles.**
    - **Processing orders or other transactions; billing.**
    - **Providing you with the products, services or**

information you request.

- **Meeting or fulfilling the reason you provided the information to us.**
- **Providing support and assistance for the Services.**
- **Improving the Services, including testing, research, internal analytics and product development.**
- **Personalizing the Services, website content and communications based on your preferences.**
- **Doing fraud protection, security and debugging.**
- **Carrying out other business purposes stated when collecting your Personal Data or as otherwise set forth in applicable data privacy laws, such as the California Consumer Privacy Act (the "CCPA").**

- **Marketing the Services**
  - **Marketing and selling the Services.**
  - **Advertising our products and services; measuring and**

    - **improving the effectiveness of advertisements**
- **Corresponding with You**
    - **Responding to correspondence that we receive from you, contacting you when necessary or requested, and sending you information about SplashLearn or the Services.**
    - **Sending emails and other communications according to your preferences or that display content that we think will interest you including reports, new features and promotional offers.**
- **Meeting Legal Requirements and Enforcing Legal Terms**
    - **Fulfilling our legal obligations under applicable law, regulation, court order or other legal process, such as preventing, detecting and investigating security incidents and potentially illegal or prohibited activities.**
    - **Protecting the rights, property or safety of**

you, SplashLearn or another party.
- Enforcing any agreements with you.
- Responding to claims that any posting or other content violates third-party rights.
- Resolving disputes.

We will not collect additional categories of Personal Data or use the Personal Data we collected for materially different, unrelated or incompatible purposes without providing you notice.

Will Company Share any of the Information it Receives?

Your Personal Data and Children's Personal Data is an integral part of our business. We neither rent nor sell your Personal Data or Children's Personal Data to anyone. We share your Personal Data and Children's only as described below. We never share that Children's Personal Data with any third party other than service providers. Usage data (i.e. performance on tests, games, etc. available on the Services) is shared through aggregated, anonymous comparisons, but never in a way that could personally identify a user. In addition, we do not offer

students chat rooms or community features that allow the sharing or posting of Children's Personal Data in a public forum.

We employ APIs of other companies and people to perform tasks on our behalf and may need to share your information with them, including Personal Data or Children's Personal Data, to provide products or services to you. Examples include sending billing receipts and weekly progress reports and providing user services. Unless we tell you differently, these companies do not have any right to use Personal Data or Children's Personal Data we share with them beyond what is necessary to execute tasks at hand. We will also require that these companies agree to protect the security of the information we share with them. For any privacy inquiries related to how these companies may handle your information on our behalf, please use the contact information of SplashLearn at the bottom of this page, and we will respond to all such inquiries.

We disclose your information to the categories of service providers and

other parties listed in this section. For more information, please refer to the state-specific sections below.

Service Providers: These parties help us provide the Services or perform business functions on our behalf. They include:

- **Hosting, technology and communication providers.**
- **Security and fraud prevention consultants.**
- **Support and customer service vendors.**
- **Product fulfillment and delivery providers.**
- **Payment processors.**
    - **Our payment processing partner Stripe, Inc. (“Stripe”) collects your voluntarily-provided payment card information necessary to process your payment.**
    - **Please see Stripe’s terms of service and privacy policy for information on its use and storage of your Personal Data.**

Analytics Partners: These parties provide analytics on web traffic or usage of the Services. They include:

- **Companies that track how users found or were referred to the Services.**
- **Companies that track how users interact with the Services.**

Advertising Partners: These parties help us market our services and provide you with other offers that may be of interest to you. They include:

- **Ad networks.**
- **Marketing Providers**

Parties You Authorize, Access or Authenticate

- **Third parties you access through the services.**
- **Social media services.**
- **Other users.**

is the list of partners that we work with.

Sharing with Affiliated Businesses

Over time, SplashLearn may grow and reorganize. We may share your information, including Personal Data and Children's Personal Data with affiliates such as a parent company, subsidiaries, joint venture partners or other companies that we control or that are under common control with us, in which case we will require those companies to agree to use your Personal Data and Children's Personal Data in a way that is consistent with this Privacy Policy.

In the event that SplashLearn is involved in a merger, reorganization, dissolution, sale of business or assets or similar event, information disclosed to or collected by may be transferred to SplashLearn's successor, or to the purchaser of such assets, as applicable. We will notify you within thirty(30) days following the completion of such a transaction via email and a prominent notice on our Website of any change in ownership or uses of your Personal Data, as well as any choices you

may have regarding your Personal Data.

User Profiles

Children under the Age of Consent are not allowed to enter or upload User Submissions, as defined in our Terms of Use. No Children's Personal Data will ever be displayed to any third party through a user profile. Email addresses are used to add new User Submissions to user profiles and to communicate through User Submissions. Users' email addresses will not be directly revealed to other users by Company, except, when the user is "connected" to another user via a shared group membership, or an invitation, or if the user has chosen to include their email address in their user profile.

Promotional Offers

We may send offers to you on behalf of other businesses. However, when we do so, we do not give the other business your name and address and such communications will not be sent to child users. If you do not wish to

receive these offers, please unsubscribe using the instructions provided in the email, the account management tools on the website, or by sending an email with your request to

Legal Obligations

We may share any Personal Data or Children's Personal Data that we collect with third parties in conjunction with any of the activities set forth under "Meeting Legal Requirements and Enforcing Legal Terms" in the "Our Commercial or Business Purposes for Collecting Personal Data" section above.

Protection of Company and Others

We may release Personal Data or Children's Personal Data to protect the rights, property, or safety of the Company, our employees, our users, or others. This includes, in the case of Personal Data, exchanging information with other companies and organizations for fraud protection and credit risk reduction.

Data that is Not Personal Data

We may create aggregated, de-identified or anonymized data from the Personal Data and Children's Personal Data we collect, including by removing information that makes the data personally identifiable to a particular user ("Anonymized Data"). We may use such Anonymized Data and share it with third parties for our lawful business purposes, including to analyze, build and improve the Services and promote our business, provided that we will not share such data in a manner that could identify the user.

With Your Consent

Except as set forth above, you will be notified when your Personal Data or Children's Personal Data may be shared with third parties, and you will be able to prevent the sharing of this information.

Is Personal Data and Children's Personal Data Secure?

The security of your Personal Data and Children's Personal Data is important to us. To prevent unauthorized access, disclosure, or improper use of your information, and to maintain data accuracy, we've established physical, technical, and administrative safeguards to protect the Personal Data and Children's Personal Data we collect. In particular:

- **We periodically review our information collection, storage and processing practices, including physical security measures, to guard against unauthorized access to systems.**
- **We perform application security testing; penetration testing; conduct risk assessments; and monitor compliance with security policies.**
- **When you enter any information anywhere on the Service, we encrypt the transmission of that information using secure socket layer technology (SSL) by default.**
- **SplashLearn's database where we store your Personal Data and Children's Personal Data is encrypted at rest,**

which converts all Personal Data or Children's Personal Data stored in the database to an unintelligible form.

- **We ensure passwords are stored and transferred securely using encryption and salted hashing.**
- **SplashLearn's Website and the Service is hosted by at separate facilities, with whom we have a contract providing for enhanced security measures.**
- **We restrict access to Personal Data and Children's Personal Data to authorized SplashLearn employees, agents or independent contractors who need to know that information in order to process it for us, and who are subject to strict confidentiality obligations and may be disciplined or terminated if they fail to meet these obligations.**

Company endeavors to protect user information to ensure that user account information is kept private, however, Company cannot guarantee the security of user account information. Your Personal Data or Children's Personal Data is protected by a password for your

privacy and security. You need to ensure that there is no unauthorized access to your account and Personal Data or Children's Personal Data by selecting and protecting your password appropriately and limiting access to your computer and browser by signing off after you have finished accessing your account.

Unauthorized entry or use, hardware or software failure, and other factors, may compromise the security of user information at any time. The website contains links to other sites. Company is not responsible for the privacy policies and/or practices on other sites. When linking to another site you should read the privacy policy stated on that site. This Privacy Policy only governs information collected on the Services. Please be aware that whenever you voluntarily post information to public areas on the Services or any other public forums, such information can be accessed by the public.

If SplashLearn becomes aware of a systems security breach by an unauthorized party or that any user

data was used for an unauthorized purpose, we will comply with relevant state and other data breach laws. As and when required by the applicable laws, we will notify users of any breach resulting in unauthorized release of data electronically, at minimum, and without unreasonable delay so that you can take appropriate steps. The notification will include details as mandated by applicable laws, such as: date of the breach, the types of information that were subject to the breach, general description of what occurred and steps SplashLearn is taking to address the breach.

Data Deletion & Retention

We store your Personal Data or Children's Personal Data for as long as it is necessary to provide products and Services, including those described above. Personal Data or Children's Personal Data associated with your account will be kept until your account is deleted unless we no longer need the data to provide products and services.

Please note that we may have to retain some information after your account is deleted, to comply with legal obligations, to protect the safety and security of our community or our Service, or to prevent abuse of our Terms.

Deleting Your Account

You have the right to ask us to delete your account at any time. You can do so by contacting us at . In case a parent wants to get a student's classroom account deleted, please contact the student's school.

Student Data Protection Policy: We will not retain a student's Personal Data for any longer than is necessary for educational purposes, legal or contractual obligations, or to provide the Service for which we receive or collect the child's Personal Data. Additionally, we only keep a student's Personal Data for as long as his or her student account is active, unless we are required by law or the child's school to retain it, need it to ensure the security of our

community or our Service or to enforce our Terms.

Please see the following section on information about data deletion due to account inactivity:

Home Accounts: For accounts created by parents, if neither the student, nor the student's parent(s) or any of the other student accounts associated with the parents' accounts have logged into their account in 2 years, SplashLearn will automatically delete or de-identify the Personal Data tied to the student account that is not necessary for educational purposes or legal obligations, including device tokens, device identifiers and IP addresses. In effect, the student account will be anonymized and de-linked from the parent account and the data will be non-recoverable. We will make reasonable attempts to inform parents about the account modification a few days in advance. We may retain some Personal Data about the parents for reasons outlined earlier, but these will not be tied to any Personal Data about the student. Parents can always

request deletion of their accounts as outlined in the "Deleting your account" section.

Classroom Account: If neither the teacher, nor any of the students associated with the teacher account have logged into their account in 2 years or performed any activity, SplashLearn automatically deletes or de-identifies any Personal Data tied to the student accounts that is not necessary for educational purposes or legal obligations, including device tokens, device identifiers and IP addresses.

Please note that some content will not be deleted given various compliance and record-keeping obligations schools have. Please contact your (or the student's) school if you would like this content deleted. If the school determines that the request should be implemented, they may submit a request to us.

What happens when an account is deleted: SplashLearn de-identifies or deletes any Personal Data tied to the accounts, including emails, usernames. device token, device

identifiers, IP addresses. Some information may persist in backups that we maintain, for a reasonable amount of time. SplashLearn retains de-identified usage information about the accounts unless we contractually obligated to delete such information.

When a teacher or school administrator deletes an account from within their SplashLearn dashboard, the deleted accounts are kept in a recoverable state for 14 days before the deletion actually takes place. This is done so that any erroneous deletions on the user's part can be recovered and accounts may be restored.

Please note that after an account is deleted from our systems, it is not possible for us to restore the account or any Personal Data or Children's Personal Data associated with it.

Communication Choices

During the time that you use the Services, you will receive emails from us, which includes emails around new features and updates,

practice reports and reminders, promotional offers and account related emails.

You may opt-out from receiving emails from within your SplashLearn account, or by using unsubscribe links included in the emails themselves. Opting out from certain types of emails may prevent us from providing you key portions of the services, such as providing progress reports that explain your child's performance and progress using the Services.

Please note even if you subscribe, we will still need to send certain essential emails while you have an account with us. These may include payment related emails, important legal or security related updates.

California Resident Rights

If you are a California resident, you have the rights set forth in this section. Please see the "Exercising Your Rights under the State Privacy Laws" section below for instructions regarding how to exercise these rights. Please note that we may process Personal Data

of our customers' end users or employees in connection with our provision of certain services to our customers. If we are processing your Personal Data as a service provider, you should contact the entity that collected your Personal Data in the first instance to address your rights with respect to such data.

If there are any conflicts between this section and any other provision of this Privacy Policy and you are a California resident, the portion that is more protective of Personal Data shall control to the extent of such conflict. If you have any questions about this section or whether any of the following rights apply to you, please contact us at .

Access

You have the right to request certain information about our collection and use of your Personal Data over the past 12 months. In response, we will provide you with the following information:

- **The categories of Personal Data that we have collected about you.**
- **The categories of sources from which that Personal Data was collected.**
- **The business or commercial purpose for collecting or selling your Personal Data.**
- **The categories of third parties with whom we have shared your Personal Data.**
- **The specific pieces of Personal Data that we have collected about you.**

If we have disclosed your Personal Data to any third parties for a business purpose over the past 12 months, we will identify the categories of Personal Data shared with each category of third party recipient. If we have sold your Personal Data over the past 12 months, we will identify the categories of Personal Data sold to each category of third party recipient.

Deletion

You have the right to request that we delete the Personal Data that we have collected about you. Under the CCPA, this right is subject to

certain exceptions: for example, we may need to retain your Personal Data to provide you with the Services or complete a transaction or other action you have requested. If your deletion request is subject to one of these exceptions, we may deny your deletion request.

Correction

You have the right to request that we correct any inaccurate Personal Data we have collected about you. Under the CCPA, this right is subject to certain exceptions: for example, if we decide, based on the totality of circumstances related to your Personal Data, that such data is correct. If your correction request is subject to one of these exceptions, we may deny your request.

Personal Data Sales Opt-Out and Opt-In

We will not sell your Personal Data, and have not done so over the last 12 months. To our knowledge, we do not sell the Personal Data of children under 16 years of age.

We Will Not Discriminate Against You for Exercising Your Rights Under the CCPA

We will not discriminate against you for exercising your rights under the CCPA. We will not deny you our goods or services, charge you different prices or rates, or provide you a lower quality of goods and services if you exercise your rights under the CCPA.

Colorado Resident Rights

If you are a Colorado resident, you have the rights set forth under the Colorado Privacy Act ("CPA"). Please see the "Exercising Your Rights under the State Privacy Laws" section below for instructions regarding how to exercise these rights. Please note that these rights are subject to certain conditions and exceptions under applicable law, which may permit or require us to deny your request.

If there are any conflicts between this section and any other provision of this Privacy Policy and you are a Colorado resident, the portion that

is more protective of Personal Data shall control to the extent of such conflict. If you have any questions about this section or whether any of the following rights apply to you, please contact us at .

Access

You have the right to request confirmation of whether or not we are processing your Personal Data and to access and request a copy of your Personal Data in a machine-readable format, to the extent technically feasible, twice within a calendar year.

Correction

You have the right to correct inaccuracies in your Personal Data, to the extent such correction is appropriate in consideration of the nature of such data and our purposes of processing your Personal Data.

Deletion

You have the right to delete Personal Data concerning you.

Personal Data Sales and Targeted Advertising Opt-Out

We do not currently sell or process for the purposes of targeted advertising your Personal Data as defined under the CPA.

We do not sell or process for the purposes of targeted advertising the Personal Data of minors under 13 years of age.

Profiling Opt-Out

We do not process your Personal Data for ‘Profiling’ to make ‘Decisions’ under the CPA. ‘Profiling’ means any form of automated processing performed on personal data to evaluate, analyze or predict personal aspects related to an identified or identifiable individual's economic situation, health, personal preferences, interests, reliability, behavior, location or movements. ‘Decision’ means any ‘Decisions that Produce Legal or Similarly Significant Effects Concerning a Consumer,’ as defined in the CPA that concern you.

Consent or “Opt-in” Required and How to Withdraw

As discussed above, we will seek Parent consent to collect or process certain Children’s Personal Data. If you would like to withdraw your consent, please follow the instructions under the “Exercising Your Rights under State Privacy Laws” section.

We Will Not Discriminate Against You

We will not process your Personal Data in violation of state and federal laws that prohibit unlawful discrimination against consumers.

Connecticut Resident Rights

If you are a Connecticut resident, you have the rights set forth under the Connecticut Data Privacy Act (“CTDPA”). Please see the “Exercising Your Rights” section below for instructions regarding how to exercise these rights. Please note that these rights are subject to certain conditions and exceptions under applicable law, which may

permit or require us to deny your request.

If there are any conflicts between this section and any other provision of this Privacy Policy and you are a Connecticut resident, the portion that is more protective of Personal Data shall control to the extent of such conflict. If you have any questions about this section or whether any of the following rights apply to you, please contact us at .

Access

You have the right to request confirmation of whether or not we are processing your Personal Data and to access your Personal Data.

Correction

You have the right to correct inaccuracies in your Personal Data, to the extent such correction is appropriate in consideration of the nature of such data and our purposes of processing your Personal Data.

Deletion

You have the right to delete Personal Data you have provided to us or we have obtained about you.

Portability

You have the right to request a copy of your Personal Data that is processed automatically in a machine-readable format, to the extent technically feasible.

Personal Data Sales and Targeted Advertising Opt-Out

We do not currently sell or process for the purposes of targeted advertising your Personal Data as defined under the CTDPA.

Profiling Opt-Out

We do not process your Personal Data for ‘Profiling’ as defined under the CTDPA. ‘Profiling’ means any form of automated processing performed on personal data to evaluate, analyze or predict personal aspects related to an identified or identifiable individual's economic situation, health, personal preferences, interests,

reliability, behavior, location or movements.

Consent or “Opt-in” Required and How to Withdraw

As discussed above, we will seek Parent consent to collect or process certain Children’s Personal Data. If you would like to withdraw your consent, please follow the instructions under the “Exercising Your Rights under State Privacy Laws” section.

We Will Not Discriminate Against You for Exercising Your Rights Under the CTDPA

We will not discriminate against you for exercising your rights under the CTDPA. We will not deny you our goods or services, charge you different prices or rates, or provide you a lower quality of goods and services if you exercise your rights under the CTDPA.

Utah Resident Rights

If you are a Utah resident, you have the rights set forth under the Utah

Consumer Privacy Act (“UCPA”). Please see the “Exercising Your Rights under the State Privacy Laws” section below for instructions regarding how to exercise these rights. Please note that these rights are subject to certain conditions and exceptions under applicable law, which may permit or require us to deny your request.

If there are any conflicts between this section and any other provision of this Privacy Policy and you are a Utah resident, the portion that is more protective of Personal Data shall control to the extent of such conflict. If you have any questions about this section or whether any of the following rights apply to you, please contact us at .

Access

You have the right to request confirmation of whether or not we are processing your Personal Data and to access your Personal Data.

Portability

You have the right to request a copy of your Personal Data in a machine-readable format, to the extent technically feasible.

Deletion

You have the right to delete Personal Data that you have provided to us.

Opt-Out of Certain Processing Activities

- **Targeted Advertising:**
  We do not process your Personal Data for targeted advertising purposes.
- **Sale of Personal Data:**
  We do not currently sell your Personal Data as defined under the UCPA.
- **Processing of Sensitive Personal Data:**
  As discussed above, we will seek Parent consent to collect or process certain Children's Personal Data. If you would like to withdraw your consent, please follow the instructions under the "Exercising Your Rights under State Privacy Laws" section.

We Will Not Discriminate Against You for Exercising Your Rights Under the UCPA

We will not discriminate against you for exercising your rights under the UCPA. We will not deny you our goods or services, charge you different prices or rates, or provide you a lower quality of goods and services if you exercise your rights under the UCPA.

Virginia Resident Rights

If you are a Virginia resident, you have the rights set forth under the Virginia Consumer Data Protection Act ("VCDPA"). Please see the "Exercising Your Rights" section below for instructions regarding how to exercise these rights. Please note that these rights are subject to certain conditions and exceptions under applicable law, which may permit or require us to deny your request.

If there are any conflicts between this section and any other provision of this Privacy Policy and you are a Virginia resident, the portion that is more protective of Personal Data

shall control to the extent of such conflict. If you have any questions about this section or whether any of the following rights apply to you, please contact us at .

Access

You have the right to request confirmation of whether or not we are processing your Personal Data and to access your Personal Data.

Correction

You have the right to correct inaccuracies in your Personal Data, to the extent such correction is appropriate in consideration of the nature of such data and our purposes of processing your Personal Data.

Portability

You have the right to request a copy of your Personal Data in a machine-readable format, to the extent technically feasible.

Deletion

You have the right to delete Personal Data you have provided to us or we have obtained about you.

Consent or "Opt-in" Required and How to Withdraw

As discussed above, we will seek Parent consent to collect or process certain Children's Personal Data. If you would like to withdraw your consent, please follow the instructions under the "Exercising Your Rights under State Privacy Laws" section.

Opt-Out of Certain Processing Activities

- **We do not process your Personal Data for targeted advertising purposes.**
- **We do not currently sell your Personal Data as defined under the VDCPA.**
- **We do not currently process your Personal Data for the purposes of profiling.**

To exercise any of your rights for these certain processing activities, please follow the instructions under

the “Exercising Your Rights under State Privacy Laws” section.

We Will Not Discriminate Against You for Exercising Your Rights Under the VCDPA

We will not discriminate against you for exercising your rights under the VCDPA. We will not deny you our goods or services, charge you different prices or rates, or provide you a lower quality of goods and services if you exercise your rights under the VCDPA.

Exercising Your Rights Under the State Privacy Laws

To exercise the rights described above, you or, if you are a California, Colorado, or Connecticut resident, your Authorized Agent (defined below) must send us a request that (1) provides sufficient information to allow us to verify that you are the person about whom we have collected Personal Data, and (2) describes your request in sufficient detail to allow us to understand, evaluate and respond to it. Each request that meets both of these criteria will be considered a

“Valid Request.” We may not respond to requests that do not meet these criteria. We will only use Personal Data provided in a Valid Request to verify your identity and complete your request. You do not need an account to submit a Valid Request.

We will work to respond to your Valid Request within the time period required by applicable law. We will not charge you a fee for making a Valid Request unless your Valid Request(s) is excessive, repetitive or manifestly unfounded. If we determine that your Valid Request warrants a fee, we will notify you of the fee and explain that decision before completing your request.

You may submit a Valid Request using the following methods:

- **Email us at: .**
- **You can also access certain of your Personal Data by logging on to your account.**

You may also authorize an agent (an “Authorized Agent”) to exercise your rights on your behalf. To do this, you must provide your

Authorized Agent with written permission to exercise your rights on your behalf, and we may request a copy of this written permission from your Authorized Agent when they make a request on your behalf.

Appealing a Denial

If you are a Colorado, Connecticut, or Virginia resident and we refuse to take action on your request within a reasonable period of time after receiving your request in accordance with this section, you may appeal our decision. In such appeal, you must (1) provide sufficient information to allow us to verify that you are the person about whom the original request pertains and to identify the original request, and (2) provide a description of the basis of your appeal. Please note that your appeal will be subject to your rights and obligations afforded to you under the CPA, CTDPA, or VCDPA (as applicable). We will respond to your appeal within the time period required under the applicable law. You can submit a Verified Request to appeal by the following method:

- **Email us at: (title must include “[STATE OF RESIDENCE] Appeal”)**

If we deny your appeal, you have the right to contact the Attorney General of your State, including by the following links: (VA),

(CO), and

(CT).

Other State Law Privacy Rights

California Resident Rights

Under California Civil Code Sections 1798.83-1798.84, California residents are entitled to contact us to prevent disclosure of Personal Data to third parties for such third parties’ direct marketing purposes; in order to submit such a request, please contact us at .

Nevada Resident Rights

If you are a resident of Nevada, you have the right to opt-out of the sale of certain Personal Data to third

parties who intend to license or sell that Personal Data. You can exercise this right by contacting us at with the subject line "Nevada Do Not Sell Request" and providing us with your name and the email address associated with your account. Please note that we do not currently sell your Personal Data as sales are defined in Nevada Revised Statutes Chapter 603A.

European Union Data Subject Rights

EU Residents

If you are a resident of the European Union ("EU"), United Kingdom, Lichtenstein, Norway or Iceland, you may have additional rights under the EU General Data Protection Regulation (the "GDPR") with respect to your Personal Data, as outlined below.

For this section, we use the terms "Personal Data" and "processing" as they are defined in the GDPR, but "Personal Data" generally means information that can be used to individually identify a person,

and “processing” generally covers actions that can be performed in connection with data such as collection, use, storage and disclosure, and includes Children’s Personal Data.

SplashLearn will be the controller of your Personal Data processed in connection with the Services. Note that we may also process Personal Data of our customers’ end users or employees in connection with our provision of certain services to customers (e.g. educational institutions) , in which case we are the processor of Personal Data. If we are the processor of your Personal Data (i.e., not the controller), please contact the controller party in the first instance to address your rights with respect to such data.

If there are any conflicts between this section and any other provision of this Privacy Policy, the policy or portion that is more protective of Personal Data shall control to the extent of such conflict. If you have any questions about this section or whether any of the following applies to you, please contact us at .

Personal Data We Collect

The “What Personal Data Does Company Collect” section above details the Personal Data that we collect from you.

Personal Data Use and Processing Grounds

The “How does the Company Use the Information it Collects” section above explains how we use your Personal Data.

Sharing Personal Data

The “Will Company Share any of the Information it Receives” section above details how we share your Personal Data with third parties.

EU Data Subject Rights

You have certain rights with respect to your Personal Data, including those set forth below. For more information about these rights, or to submit a request, please email us at .

If any request made under this section is clearly unfounded or excessive, we may reject the request or require a reasonable fee to honor the request. Additionally, we may not be able fully comply with your request if it jeopardizes the rights of others, or if it is not required by law, If we decide to reject your request, we will inform you of the reasons for not taking action and provide information on other possible remedies. If we decide that a reasonable fee is necessary, we will promptly inform you and will comply with the request upon receipt of this fee.

In some cases, we may also need you to provide us with additional information, which may include Personal Data, if necessary to verify your identity and the nature of your request.

We will respond to all requests within a reasonable timeframe. If our full response will ever take more than a month due to complexity or scope, we will notify you of this and keep you updated.

Review and update your data: You have the right to access and update any personal data that we have collected. Some personal data, such as the account holder's name and email address can be found and updated using the account management tools on our website at . For any personal data beyond this, please submit a request using the contact information at the end of this section.

Delete your data: You also have the right to get your personal data deleted. This is sometimes known as the ‘right to be forgotten’. To request that we delete all personal data about you, please submit a request using the contact information at the end of this section.

For more information on our data deletion and retention practice from the section on "Data Deletion and Retention"

Restrict Processing: You have the right to restrict how we process your personal data in certain circumstances. This is an alternative to requesting the

deletion of your data. Rather than requesting we delete all of your personal data, you may request that we limit our uses of your personal data to specific purposes. You may wish to request we restrict our processing if you contest the accuracy of your personal data and we are working to verify this information, or if you want us to retain your personal data in connection to a legal claim but cease processing it.

Withdrawal of Consent: If we are processing your personal data based on your consent (as indicated at the time of collection of such data), you have the right to withdraw your consent at any time. Please note, however, that if you exercise this right, you may have to then provide express consent on a case-by-case basis for the use or disclosure of certain of your Personal Data, if such use or disclosure is necessary to enable you to utilize some or all of our Services.

Data Portability: You have the right to obtain copies of your information in a structured, commonly used format so that you can move your

data between our service and the services of others. We may request more information to confirm your identity before providing any personal data.

Right to Object: You have the right to object to the processing of your personal data for direct marketing purposes or when our processing of your data is based on legitimate interests. You may request that we stop processing your personal data for direct marketing purposes. This is an absolute right and we cannot refuse this request. Beyond direct marketing, if you wish to exercise this right, you must give specific reasons as to why you object to our processing of your data, based on your particular situation. Even after receiving such a request, we may continue processing if it is necessary for the exercise/defense of a legal claim or if we can demonstrate a compelling legitimate ground for the processing.

Right to File Complaint: You have the right to lodge a complaint about SplashLearn's practices with respect to your Personal Data with the supervisory authority of your

country or EU Member State. A list of Supervisory Authorities is available here:

Lawful Bases for Processing Personal Data

If you are an individual in the European Union (EU) or an EU citizen, we collect and process data about you only where we have legal bases for doing so under applicable EU laws. This means we collect and process your data only when:

- **It is necessary for a legitimate interest (which is not overridden by your individual privacy interests), such as preventing fraud, improving the Services, and increasing the security of the Services and network infrastructure;**
- **You have consented to this collection and processing for a specific purpose;**
- **It is necessary to fulfil our contractual obligations; or**
- **It is necessary to comply with a legal obligation.**

Some examples of our legitimate interests and the data being processed include:

- **Network and information security (password, IP address, Device ID)**
- **Customer Support, and fraud prevention (name, email address)**
- **Improving our products and services (device hardware information, activity logs)**

Where we rely on your consent to process your personal data, you have the right to withdraw or decline consent at any time. If you wish to withdraw your consent, please contact us using the information in the Contact for Individual Rights Requests section.

Where we rely on our legitimate interests to process your personal data, you have the right to object. More information on exercising this right can be found in the EU Data Subject Rights section.

If you have any questions about or need further information concerning the legal basis on which

we collect and use your personal data, please contact us at

Contact for Individual Rights Requests

Please use the below information when submitting a request to exercise any of the above rights. Please do not submit requests across multiple communication channels. We will make all efforts to respond to your request within a reasonable timeframe.

Email:

Physical Mail:

StudyPad, Inc.

Attn: Joy Deep Nath

201 Spear Street, Suite 1100

San Francisco, California 94105

Representative for data subjects in the EU and UK

We value your privacy and your rights as a data subject and have

therefore appointed Prighter Group with its local partners as our privacy representative and your point of contact for the following regions:

European Union (EU)

United Kingdom (UK)

Prighter gives you an easy way to exercise your privacy-related rights (e.g. requests to access or erase personal data). If you want to contact us via our representative, Prighter or make use of your data subject rights, please visit the following website:

International / Cross Border Data Transfers

The Services are hosted and operated in the United States ("U.S.") through SplashLearn and its service providers, and if you do not reside in the U.S., laws in the U.S. may differ from the laws where you reside. By using the Services, you acknowledge that any Personal Data about you, regardless of whether provided by you or obtained from a third party, is being

provided to SplashLearn in the U.S. and will be hosted on U.S. servers, and you authorize SplashLearn to transfer, store and process your information to and in the U.S., and possibly other countries. In some circumstances, your Personal Data may be transferred to the U.S. pursuant to a data processing agreement incorporating standard data protection clauses or in reliance on the EU-U.S. Data Privacy Framework ("EU-U.S. DPF") the UK Extension to the EU-U.S. DPF ("UK-U.S. DPF"), and the Swiss-U.S. Data Privacy Framework ("Swiss-U.S. DPF").

EU-U.S. DPF SWISS – U.S. DPF AND UK-U.S. DPF

SplashLearn complies with the EU-U.S. DPF, the UK-U.S. DPF, and Swiss-U.S. Data DPF (collectively, the "DPF") as set forth by the U.S. Department of Commerce. SplashLearn has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles (EU-U.S. DPF Principles) with regard to the processing of personal data received from the European Union in reliance on the

EU-U.S. DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-U.S. DPF. SplashLearn has certified to the U.S. Department of Commerce that it adheres to the Swiss-U.S. Data Privacy Framework Principles (Swiss-U.S. DPF Principles) with regard to the processing of personal data received from Switzerland in reliance on the Swiss-U.S. DPF. If there is any conflict between the terms in this privacy policy and the EU-U.S. DPF Principles and/or the Swiss-U.S. DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework (DPF) program, and to view our certification, please visit .

The Federal Trade Commission has jurisdiction over SplashLearn's compliance with the DPF. This Privacy Policy describes the types of Personal Data we collect, the purposes for which we collect and use your Personal Data, and the purposes for which we disclose your Personal Data to certain types of third parties in the sections above. Pursuant to the DPF, EU, UK, and Swiss individuals have the right to obtain our confirmation of

whether we maintain Personal Data relating to you in the U.S. Upon request, we will provide you with access to the Personal Data that we hold about you. You may also correct, amend, or delete the Personal Data we hold about you. An individual who seeks access, or who seeks to correct, amend, or delete inaccurate data transferred to the U.S. under DPF, should direct their query to . If requested to remove data, we will respond within a reasonable timeframe. For more information about rights afforded to you, please see the European Union Data Subject Rights Section of the Privacy Policy.

In addition, we will provide you with the choice to opt-out from the sharing of your Personal Data with any third parties (other than our agents or those that act on our behalf or under our instruction), or before we use it for a purpose that is materially different from the purpose for which it was originally collected or subsequently authorized.

We will provide you with the choice to opt-in to sharing your sensitive Personal Data with any third parties

or if we plan to process your Personal Data for a purpose other than those for which it was originally collected or subsequently authorized. To request to limit the use and disclosure of your Personal Data, please submit a written request to .

In addition to any other disclosures described in our Privacy Policy, in certain situations, SplashLearn may be required to disclose personal data in response to lawful requests by public authorities, including to meet national security or law enforcement requirements.

SplashLearn is responsible for the processing of personal data it receives, under the DPF Programs , and subsequently transfers to third-parties acting as an agent on its behalf SplashLearn complies with the DPF Principles for all onward transfers of personal information from the EU, UK and Switzerland, including the onward transfer liability provisions. In particular, SplashLearn remains liable under the DPF Principles if our agents process Personal Data in a manner inconsistent with the DPF Principles, unless SplashLearn

proves that we are not responsible for the event giving rise to the damage.

With respect to personal data received or transferred pursuant to the DPF Programs, SplashLearn is subject to the jurisdiction and regulatory enforcement powers of the U.S. Federal Trade Commission and other authorized statutory bodies. In certain situations, SplashLearn commits to resolve DPF Principles-related complaints about the collection and use of your personal data. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of personal data received in reliance on the DPF Programs should contact us at . In compliance with the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF and the Swiss-U.S. DPF, SplashLearn commits to refer unresolved complaints concerning our handling of personal data received in reliance on the DPF Programs to BBB National Programs, an alternative dispute resolution provider based in the United States. If you do not receive timely acknowledgment of your DPF Principles-related complaint from

us, or if we have not addressed your DPF Principles-related complaint to your satisfaction, please visit for more information or to file a complaint. The services of BBB National Programs are provided at no cost to you.

If your DPF complaint cannot be resolved through the above channels, under certain conditions, you may invoke binding arbitration for some residual claims not resolved by other redress mechanisms. See Annex 1 of the DPF Principles, located at .

Cross-Border Transfers other than to the United States

Personal data may be accessed by our personnel in India for the purpose of providing services. In such instances, we use Standard Contract Clauses approved by the European Commission to protect personal data. If you have queries, please contact us using the contact information mentioned at the end of the document.

Changes to this Privacy Policy

Company may revise this Privacy Policy from time to time. Use of information we collect is subject to the Privacy Policy in effect at the time such information is used.

If we make material changes in the way we use Personal Data or Children's Personal Data, we will notify you by posting an announcement on our Services, or by email and, if necessary, obtain prior verifiable parental consent.

Schools signed up for a membership will be notified in advance of any material changes to privacy policies, including practices around new or additional data collection, or new ways of using the data that may lessen your privacy and rights.

We encourage you to review this Privacy Policy from time to time, to stay informed about our collection, use, and disclosure of personal information through the Service. If you don’t agree with any changes to the Privacy Policy, you may

terminate your account. By continuing to use the Service after the revised Privacy Policy has become effective, you acknowledge that you accept and agree to the current version of the Privacy Policy.

Questions or Concerns

If you have any questions or concerns regarding privacy on our Services, please send us a detailed email at . We will make every effort to resolve your concerns.

StudyPad, Inc.

201 Spear Street, Suite 1100

San Francisco California - 94105

For data subjects in the EU, Prighter Group with its local partners has been appointed as our representative. If you want to make use of your data privacy rights, please visit: https://web.archive.org/web/20250305072152/https://prighter.com/q/17025404